

24SMCP00546 24SMCP00546

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-23

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Case Number: 24SMCP00546 Hearing Date: July 23, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT 207

HEARING

DATE July 23, 2026

CASE

NUMBER 24SMCP00546

MOTION Motion to Set Aside Entry of
Default and Default Judgment

MOVING

PARTY Respondent AAA Water
Restoration, Inc.

OPPOSING

PARTY Petitioner Ava Naeini

MOTION

This

case arises from a dispute concerning a lien over real property.

On

October 21, 2024, Petitioner filed a Petition for Release of Property from Lien
against Respondent, seeking that the real property at issue be released from

Respondent's claim of lien, costs in the amount of \$2,500, and an unspecified amount of punitive damages. Respondent was personally served with a copy of the original Petition on January 15, 2025. Default was entered against Respondent as to the original petition on March 10, 2025.

On

April 4, 2025, Petitioner filed an Amended Petition, alleging four causes of action for (1) fraud; (2) breach of covenant of good faith and misconduct; (3) harassment, misconduct, and improper charging; and (4) intentional infliction of emotional distress, seeking \$16,000 in special damage sand \$5,000 in punitive damages, but no longer seeking release of the claim of lien. The proof of service indicates the Amended Petition was personally served on September 22, 2025. Default was entered as to the Amended Petition on November 20, 2025.

On

December 12, 2025, the Court entered default judgment in the amount of \$16,080.00, representing general damages in the amount of \$16,000 and costs in the amount of \$80.

Defendant

now moves to set aside the entry of default and default judgment. Plaintiff opposes the motion

ANALYSIS

I.

DISCRETIONARY AND MANDATORY RELIEF

"Proceeding to judgment in the absence of a party is an extraordinary and disfavored practice in Anglo-American jurisprudence: The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (Au-Yang v. Barton (1999) 21 Cal.4th 958, 963 [cleaned up].)

Code of Civil procedure section 473 "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 25 (hereafter Minick).) "Section 473 is a remedial statute to be "applied liberally" in favor of relief if the

opposing party will not suffer prejudice.

Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (Minick, *supra*, 3 Cal.App.5th at p. 24 [cleaned up].)

The party or the legal representative must seek such relief “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b); see *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 [“because more than six months had elapsed from the entry of default, and hence relief under section 473 was unavailable”]; *People v.*

The North River Ins. Co. (2011) 200 Ca.App.4th 712, 721 [motion for relief under section 473 must be brought “within a reasonable time, in no case exceeding six months”]). “The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period.” (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340, citations omitted.)

A.

DISCRETIONARY

RELIEF

Per Code of Civil Procedure

section 473, subdivision (b), a court may “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

B.

MANDATORY

RELIEF

Notwithstanding any other requirements of this

section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which

will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

(Code Civ. Proc., § 473, subd. (b).) "In considering whether the trial court properly denied relief under section 473(b), the first question is the sufficiency of defendants' showing of attorney fault, if believed, to trigger the mandatory relief provisions of that statute." (Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868, 896, disapproved on other grounds by Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830 (hereafter Standard).) "Under section 473(b), a party is entitled to relief from a default and resulting judgment whenever, on timely application for relief, his attorney 'attest[s] to his or her mistake, inadvertence, surprise, or neglect' in connection with the default or the judgment." (Ibid.)

Defendant contends the failure to timely respond to the amended petition was due to counsel's mistake, inadvertence, surprise, and/or excusable neglect. In support, Defendant advances the attorney Declaration of Jason J. Allison, which provides:

2. In November 2024, AAA made me aware of the immediate action and sent me the Petition. After reading the Petition and Proof of Service of Process, I formed the opinion there were irregularities in the claimed service. Regardless, I recognized the Petition was seeking a remedy that was impossible under the circumstances. Accordingly, I was not concerned about Petitioner obtaining a judgment from the Petition.

3. I agreed to represent AAA should any further matters develop in the case.

4. I was not aware the Petition was amended alleging new causes of action which, if proven, would create liability for AAA until the Default Judgment entered on December 12, 2026 (sic), was served on AAA which sent it to me immediately.

5. Prior to that, I had been aware one or more proposed judgments were rejected, and I assumed it was due to the error he had already analyzed in the initial Petition.

6. Had I properly checked the case history hosted on the LASC website, I would have known Petitioner had amended the Petition and served it on AAA. Had I learned such facts from a more competent review of the Case History, I would have filed an Answer.

7. Although not required for mandatory relief, I assert in good faith that my client has a defense to the allegations of the Amended Petition. Attached hereto as "Exhibit A" is a true and correct copy of the Answer to be filed should the requested relief be granted.

(Allison
Decl. ¶¶ 2-7.)

Defendant has adequately demonstrated that its failure to timely respond to the Amended Petition was due to counsel's mistake, inadvertence, surprise, or excusable neglect vis-à-vis the remedies sought in the Amended Petition. Further, the May 4, 2026 motion is timely brought within six months of the Court's December 12, 2025 entry of judgment.

In opposition, Plaintiff argues that Defendant was aware of the proceedings by virtue of the original notice, as well as subsequent enforcement proceedings in March and May, which were noticed in January and March.

Ultimately, Counsel has demonstrated that he was mistaken or surprised about the remedies sought in the Amended Petition, and through Counsel's inadvertence or other neglect, failed to timely respond to it. Under these circumstances, the Court finds that setting aside the default and default judgment is mandatory.

Plaintiff also requests sanctions in opposition, pursuant to Code of Civil Procedure 128.5 and 128.7, due to counsel's bad faith.

However, Plaintiff's request is procedurally improper. "A motion for sanctions under this section shall be made separately from other motions or

requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (f)(1)(A); § 128.7, subd. (c)(1).) Further, "If the alleged action or tactic is the making or opposing of a written motion [...] that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected." (Code Civ. Proc., § 128.5, subd. (f)(1)(B); accord, § 128.7, subd. (c)(1).) Here, the request was not made separately, and Plaintiff has not demonstrated compliance with the 21-day safe harbor provision.

Further, Plaintiff has not advanced sufficient evidence demonstrating bad faith or calling into question the veracity of Counsel's statements. Therefore, the Court denies Plaintiff's request for sanctions.

CONCLUSION

For the foregoing reasons, the Court grants Defendant's motion to set aside the entry of default and default judgment, and orders Defendant to file and serve the proposed Answer attached to the motion papers on or before August 6, 2026.

Further, the Court sets a Trial Readiness Conference on January 14, 2027 at 8:30 A.M. in Department 207. All parties shall proceed expeditiously with non-expert discovery. No later than 15 days before the scheduled Trial Readiness Conference, all parties shall meet and confer, and cooperate in the preparation of a Joint Report which shall be filed no later than 5 court days before the Conference. The Joint Report shall provide detailed information regarding the following: Discovery, ADR and Motion Practice. All parties are advised that the Court may set the case for trial at the Conference within 6 -12 months, depending on the Court's trial calendar. All parties shall obtain a copy of the Minute Order of July 23, 2026 to ensure compliance with the Conference and the required report.

Defendant shall provide notice of the Court's orders and file the notice with a proof of service forthwith.

DATED:

July 23, 2026 _____/s/ _____

Michael E. Whitaker

Judge

of the Superior Court